CASES ADJUDGED

IN THE

SUPREME COURT OF THE UNITED STATES

AT

OCTOBER TERM, 2002

FORD MOTOR CO. ET AL. *v.* McCAULEY ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT

No. 01–896. Argued October 7, 2002—Decided October 15, 2002

Certiorari dismissed. Reported below: 264 F. 3d 952.

Seth P. Waxman argued the cause for petitioners. With him on the briefs were *Walter E. Dellinger*, *John H. Beisner*, *Brian P. Brooks*, *Jonathan D. Hacker*, *Christopher R. Lipsett*, and *Bruce M. Berman.*

Steve W. Berman argued the cause for respondents. With him on the brief were *Roger W. Kirby*, *James G. Lewis*, and *Russell J. Drake.**

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*Briefs of *amici curiae* urging reversal were filed for the United States by *Solicitor General Olson*, *Assistant Attorney General McCallum*, *Deputy Solicitor General Clement*, *Barbara McDowell*, *Barbara C. Biddle*, and *Thomas M. Bondy;* for the Chamber of Commerce of the United States of America by *Evan M. Tager*, *David M. Gossett*, and *Robin S. Conrad;* for the Business Roundtable by *Bruce E. Clark;* for the National Association of Manufacturers by *Carter G. Phillips*, *Gene C. Schaerr*, *Paul J. Zidlicky*, *Michael S. Lee*, *Jan S. Amundson*, and *Quentin Riegel;* for the Pharmaceutical Research and Manufacturers of America by *David Klingsberg*, *Thomas A. Smart*, and *Mark S. Popofsky;* for the Product Liability Advisory Council by *Theodore J. Boutrous, Jr.;* and for State

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PER CURIAM.

The writ of certiorari is dismissed as improvidently granted.

It is so ordered.

Farm Mutual Automobile Insurance Co. by *Sheila L. Birnbaum*, *Douglas W. Dunham*, and *Ellen P. Quackenbos*.

Briefs of *amici curiae* urging affirmance were filed for the Association of Trial Lawyers of America by *Jeffrey Robert White* and *Laura C. Tharney;* and for Trial Lawyers for Public Justice by *Roger L. Mandel*, *Marc R. Stanley*, *Mark A. Chavez*, *Arthur Bryant*, and *Michael Quirk*.